



POLICE DEPARTMENT

April 25, 2025

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202310440 (Incident Date: November 2, 2023) regarding Sergeant Sandeep Thomas, Tax No. 955575 (POS Case No. C-033548)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202310440, pertaining to Sergeant Sandeep Thomas. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Sergeant Thomas would be detrimental to the Police Department's disciplinary process.

In this matter, the Police Commissioner agrees with the substantiated allegations, however, disagrees that Charges and Specifications are the appropriate form of discipline. Sergeant Thomas has been a member of the Department for over twelve years with no formal disciplinary history and no prior substantiated CCRB allegations. Furthermore, although he was the supervisor on scene, his involvement in the decision to stop the individual appeared to be based on another officers' observations. The subsequent frisk and search were also short in duration and minimally invasive. Additionally, upon conclusion of the interaction, multiple officers offered their business card in the presence of Sergeant Thomas. One card was accepted and numerous ones were declined. Although these facts do not absolve Sergeant Thomas from his requirement to provide a business card, offering an additional card at this point would have been redundant and likely rejected.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to direct the issuance of a Schedule "A" Command

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Discipline with the forfeiture of one (1) vacation day and Training from the Legal Bureau in Patrol Guide Procedure 212-11 (Investigative Encounters/Stop, Frisk, and Search) and Administrative Guide Procedure 304-11 (Compliance with New York City Right to Know Act/Right to Know Business Card).

Sincerely,


Michael P. Baker
Deputy Chief
Commanding Officer
Police Commissioner's Office



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



MOHAMMAD KHALID
INTERIM CHAIR

April 29, 2025

The Honorable Jessica Tisch
Police Commissioner
New York City Police Department
One Police Plaza
New York, New York 10038

Re: CCRB Case No. 202310440 (Incident Date: November 2, 2023) regarding Sergeant Sandeep Thomas, Tax No. 955575 (PODS Case No. C-033548)

Commissioner Tisch:

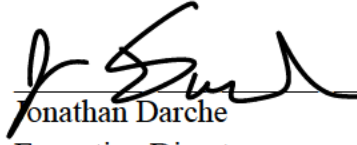
I am writing in response to the letter from Deputy Chief Michael P. Baker, dated April 25, 2025, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent to dismiss the Charges and Specifications pertaining to Sergeant Sandeep Thomas and issue a Schedule “A” Command Discipline and Training. Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding between the CCRB and the New York City Police Department, I am responding to Deputy Chief Baker’s notification.

Deputy Chief Baker’s letter acknowledges that Sgt. Thomas was the supervisor on scene during an unlawful stop. The letter further acknowledges that Sgt. Thomas participated in an improper frisk and search of the stopped civilian, who was just 18 years old at the time of the incident. Furthermore, before the conclusion of police activity, it is undisputed that Sgt. Thomas did not provide a business card as is required by the Police Department’s Administrative Guide.

Deputy Chief Baker stated that you analyzed the facts and circumstances of this matter and determined that pursuing Charges and Specifications against Sgt. Thomas would be detrimental to the Police Department’s disciplinary process. Instead, you intend to dismiss the charges and direct the issuance of a Schedule “A” Command Discipline with the forfeiture of one (1) vacation day and impose Training from the Legal Bureau.

As the Police Commissioner is the final arbiter of discipline, the CCRB respects her authority to make this determination.

Respectfully submitted,

A handwritten signature in black ink, appearing to read "Jonathan Darche", is written over a horizontal line.

Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

April 30, 2025

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202310440 (Incident Date: November 2, 2023) regarding Sergeant Sandeep Thomas, Tax No. 955575 (POS Case No. C-033548)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated April 29, 2025, concerning the Civilian Complaint Review Board ("CCRB") case involving Sergeant Sandeep Thomas, and nevertheless maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Sergeant Thomas for the reasons expressed in my April 25, 2025 letter.

Therefore, the Police Commissioner affirms her decision to exercise Provision Two of the Memorandum of Understanding and now directs the issuance of a Schedule "A" Command Discipline with the forfeiture of one (1) vacation day and Training for the substantiated misconduct.

Sincerely,


Michael P. Baker
Deputy Chief
Commanding Officer
Police Commissioner's Office

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